

## 26STCV02799 26STCV02799

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 26STCV02799 Hearing Date: June 30, 2026 Dept: 529

VICTOR CABRERA VS KIA AMERICA, INC.

MOTION FOR ENTRY OF PROTECTIVE ORDER TO  
GOVERN PRODUCTION OF CONFIDENTIAL MATERIALS

Date of Hearing: June

30, 2026 Trial

Date: None

set.

Department: 529 Case

No.: 26STCV02799

Moving Party:

Defendant Kia America, Inc.

Responding Party: Plaintiff

Victor Cabrera

### BACKGROUND

This is a lemon law action. On January

17, 2026, Plaintiff Victor Cabrera filed a complaint against Defendant Kia

America, Inc. for various violations of the Song-Beverly Consumer Warranty Act.

### [TENTATIVE] RULING

Defendant Kia America, Inc.'s Motion

for Entry of Protective Order to Govern Production of Confidential Materials is GRANTED.

## DISCUSSION

Defendant Kia America, Inc. ("KA") requests this court to enter a Protective Order applicable to the production of materials pursuant to Code of Civil Procedure section 871.26.

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, oppression, or undue burden and expense," including that "a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way." (CCP § 2031.060(b)(5).) A party may request entry of an order to protect its confidential and proprietary business information at any time. (*Stadish v. Sup. Ct. (Southern Calif. Gas Co.)* (1999) 71 Cal.App.4th 1130, 1144 [finding that "upon a proper showing a party may – even after it has waived its right to object to the production of documents, and has produced most of the documents requested – seek a protective order restricting dissemination of the documents."].)

Defendant KA argues entry of a Protective Order is necessary as the documents at issue here contain KA's confidential and proprietary business information, and they reveal methods and processes that KA independently developed and has maintained as confidential and secret to KA. KA contends a document that was previously designated as confidential and subject to a protective order should not lose its designation simply because it is filed under the new statutory scheme that happens to be silent on the issue.

The court GRANTS Defendant KA's motion for protective order. This process will not relieve KA of its discovery obligations and the new mandatory disclosures under Code of Civil Procedure section 871.26. As noted by Defendant KA, the proposed Protective Order is reasonably targeted and will allow the parties to continue litigating this case without disruption. If Plaintiff wants to challenge a "Confidential" designation, they may do so by noticed motion.

Based on the foregoing, Defendant KA's

Motion for Protective Order is GRANTED.